ORDINANCE NO. 545

AN ORDINANCE ALLOWING STATUTORY PROVISIONS FOR RETIREMENT FOR ELECTED OFFICIALS WITHIN THE CITY OF RECTOR, ARKANSAS

WHEREAS, the City of Rector does not have a current retirement option for elected officials of the City of Rector; and

WHEREAS, Arkansas Code Annotated and the State of Arkansas has statutory provisions for Elected Officials; and

WHEREAS, it has been determined that the City of Rector shall allow such retirement for elected officials as provided under the following code provisions:

NOW THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS, AS FOLLOWS:

SECTION 1. It has been determined that effective December 15, 2010, the City of Rector will provide statutory retirement for the elected position of Mayor, as stated in ACA Sec. 24-12-124.
SECTION 2. It has been determined that effective December 15, 2010, the City of Rector will provide statutory retirement for the elected position of City ~~Clerk~~/Treasurer, as stated in ACA Sec. 24-12-127.
SECTION 3. It has been determined that effective December 15, 2010, the City of Rector will provide statutory retirement for the elected position of City Attorney, as stated in ACA Sec. 24-12-120.
SECTION 4. The amount of the retirement benefit for the Mayor position shall be based using the same rate as the City Attorney and City Clerk/Treasurer positions.
SECTION 5. At any time, such elected official may chose to opt-out of the statutory retirement provisions and may enroll, if eligible, with the Arkansas Public Employee Retirement System. Such elected officials may enroll in one of the two programs, but not both simultaneously.
SECTION 6. It is determined by the City of Rector due to the need for matters to be resolved in the coming months, and an emergency is declared to exist and this ordinance shall be in full force and effect upon its passage
SECTION 7. All Ordinances and parts of Ordinances in conflict within the provisions of this Ordinance are hereby repealed. Unless specifically amended herein, all other portions of Ordinances shall remain in full force and effect.
SECTION 8. This ordinance shall become effective December 15th 2010 and shall only apply to the above elected officials currently serving and to any individuals elected in such capacity in the future.

PASSED AND APPROVED on this 6th day of December 2010.

Mayor Ron Kemp

ATTEST:

City Clerk, Lowell McKinney